EXHIBIT 36

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

KATHLEEN MOLLER	*	**CIVIL ACTION NO. 24-0228-WBV-DPC**
	*	
VERSUS	*	**JUDGE WENDY B. VITTER**
	*	
MARTIAN SALES, INC; JOPEN, LLC, a Texas limited liability company; JOHNSON FOODS, LLC, a Wyoming limited liability company; LP IND., LLC, a Wyoming limited liability company; CAG HOLDINGS, LLC, a Wyoming limited liability company; RMH HOLDINGS, INC., a Wyoming corporation; ABC INSURANCE COMPANY and John Does 1-4.	*	**MAGISTRATE DONNA PHILLIPS CURRAULT**

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DEFENDANT LP IND., LLC'S RESPONSES AND OBJECTIONS
TO PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION

TO: Plaintiff, Kathleen Moller, by and through her attorneys of record, Nelson W. Wagar, III, Sarah Wagar Hickman, Wagar Hickman, LLP, 1401 West Causeway Approach, Mandeville, Louisiana and Michael Cowgill, Tamara J. Williams, mctlaw, 1605 Main Street, Suite 710, Sarasota, Florida 34236

Defendant LP Ind., LLC, pursuant to the Federal Rules of Civil Procedure, responds to Plaintiff's Kathleen Moller's First Set of Requests for Production, as follows:

GENERAL OBJECTIONS

1. Defendant objects to the Requests to the extent that they are vague, ambiguous, overbroad, unduly burdensome, oppressive, not relevant to the subject matter of this action, and not reasonably calculated to lead to the discovery of admissible evidence.

2. Defendant objects to the Requests to the extent that they are contradicted by, inconsistent with, or impose on Defendant any obligations in excess of the requirements of the Federal Rules of Civil Procedure.

Defendant discovers documents responsive to this Request, Defendant will produce relevant, non-privileged documents in its possession, custody and control.

REQUEST NO. 5:

Produce all general liability insurance policies and product liability insurance policies held for damages caused by OPMS kratom within Louisiana.

RESPONSE:

Defendant does not believe that any responsive documents exist. However, subject to all General Objections, Defendant will conduct a reasonably diligent search from January 1, 2020 through February 6, 2023 for documents responsive to this Request that relate to Louisiana; to the extent Defendant discovers documents responsive to this Request, Defendant will produce relevant, non-privileged documents in its possession, custody and control.

REQUEST NO. 6:

Produce all documents exchanged with governmental authorities or public officials within Louisiana regarding kratom.

RESPONSE:

No responsive documents exist in LP's possession, custody, or control.

REQUEST NO. 7:

Produce all contracts and agreements to do business with any entity within Louisiana.

RESPONSE:

No responsive documents exist in LP's possession, custody, or control.

REQUEST NO. 8:

Produce all contractual documents and agreements between Defendant and any entities, contractors, employees, or other persons who have manufactured, processed, or supplied kratom to Defendant, which kratom was ultimately distributed within or sold within Louisiana, over the past five (5) years.

DATED: September 12, 2024

Respectfully submitted,

By */s/ Gwendolyn C. Payton*

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